

**JUSTIFICATION REVIEW DOCUMENT
FAR 13.5 SIMPLIFIED PROCEDURES FOR CERTAIN COMMERCIAL ITEMS
SOLE SOURCE JUSTIFICATION AND APPROVAL**

Program/Equipment: U.S. Army Dugway Proving Ground (DPG), Chemical Biological Center (CBC), BioTest Division (BTD) requests maintenance and repair service of Polymerase Chain Amplification (PCR) and Flow Cytometer instrumentation.

Authority: Simplified Procedures for Certain Commercial Items, Title 41 U.S.C. 1901 as implemented by FAR 13.5: 13.501(a)(2)(i) - Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements.

Amount: The estimated value of this effort is [REDACTED] including all options and extensions in accordance with FAR 52.217-8.

Prepared by: Amy M. Eilerts [REDACTED]
[REDACTED]

Contracting Officer: Paul E. Frailey [REDACTED]
Contracting Officer [REDACTED]

Technical: [REDACTED]

Requirements: [REDACTED]

Reviews: I have reviewed this justification and find it adequate to support sole source.

Program Manager: [REDACTED] [REDACTED]
[REDACTED] Date: See digital signature

Small Business Professional: [REDACTED] [REDACTED]
[REDACTED] Date: See digital signature

Control No.: Dugway Proving Ground 2025-24

[REDACTED]

[REDACTED]

[REDACTED]

Date: See digital signature

[REDACTED]

DSN: [REDACTED]

Date: See digital signature

[REDACTED]

Control No.: Dugway Proving Ground 2025-24

**FAR 13.5 Simplified Procedures for Certain Commercial Items
Sole Source Justification and Approval**

1. Contracting Activity: U.S. Army Mission and Installation Contracting Command (MICC)-Dugway Proving Ground (DPG), 5330 Valdez Circle, MS #1, Dugway Proving Ground, UT 84022

2. Description of Action: U.S. Army Dugway Proving Ground (DPG), Chemical Biological Center (CBC), BioTest Division (BTD) requests a firm-fixed-price contract with ThermoFisher DBA Life Technologies Corporation. The Government projects award for March 2024 and fiscal year 2025 and Research, Development, Test and Evaluation funds will be used.

☒ An acquisition plan is not required because this procurement does not meet the threshold at Defense Federal Acquisition Regulation Supplement 207.103(d)(i)(B).

This action is a follow-on to contract W911S620P0031. That contract was not competed under authority Simplified Procedures for Certain Commercial Items, 41 U.S.C. 1901 as implemented by FAR Subpart 13.5: 13.501-(a)(2)(i) Only one responsible source and no other supplies or services will satisfy agency requirements. Paragraph 5, "Actions to Increase Competition" of the previous justification, stated: A sources sought posted on beta.SAM.gov on 10 Jun 2020 yielded no interest from industry. (Previous approved J&A is attached.)

3. Description of Supplies/Services: The requested services are for maintenance and repair (M&R) services for eleven (11) Polymerase Chain Reaction (PCR) instruments and thermal cyclers which includes annual preventative maintenance (PM), calibration, and instrument recertification services for three (3) ViiA7 thermal cyclers, six (6) QuantStudio12K Flex OA thermal cyclers and two (2) Absolute Q thermal cyclers, all manufactured by ThermoFisher Scientific and located at BioTest Division (BTD), DEVCOM Chemical Biological Center (CBC), Dugway Proving Ground (DPG). DPG's BTD utilizes real-time, Quantitative Polymerase Chain Amplification (PCR) and flow cytometry for quality assurance and quality control (QA/QC) of materials used to test biological defense systems. These instruments are also used to analyze test samples collected in laboratory, chamber and field tests.

The contractor is expected to provide annual preventative maintenance (PM) visits for each year of the contract. The contractor will also provide emergency repairs to contracted equipment within two (2) business days from the time a service call is placed. All work is to be performed at DPG and in conjunction with ISO 17025 standards by a certified engineer.

Base Period: 01 April 2025 to 31 March 2026
Option Period 1: 01 April 2026 to 31 March 2027



Option Period 2: 01 April 2027 to 31 March 2028

Option Period 3: 01 April 2028 to 31 March 2029

FAR Clause 52.217-8 option: 01 April 2029 to 31 October 2029



4. Authority Cited: Simplified Procedures for Certain Commercial Items, Title 41 U.S.C. 1901 as implemented by FAR 13.501-(a)(2)(i) Only one responsible source and no other supplies or services will satisfy agency requirements.

5. Reason for Authority Cited:

- a. Only Source Validation: Life Technologies Corporation DBA ThermoFisher Scientific is the sole authorized servicer of ThermoFisher Scientific manufactured instruments and is the only company that can provide the required services on this proprietary equipment within warranty requirements. ThermoFisher Scientific is the Original Equipment Manufacturer (OEM) for these instruments and has the expertise to maintain these systems. All hardware and software within these PCR and flow cytometer instruments are proprietary and ThermoFisher Scientific is the only contractor authorized to work on the equipment. The contractor does not have any distributors.

Life Technologies, Inc., a part of ThermoFisher Scientific is the sole manufacturer of the listed instruments and has not issued a letter of assurance nor provided a manufacturer's training certification to any third party (or its employees, subcontractors, or agents) for the servicing of its manufactured instruments. Life Technologies Corporation/ThermoFisher Scientific maintains intellectual property rights to its data collection software and service tools software. Third-party resellers and service providers are strictly prohibited and unauthorized to access, use, or sell this software. Doing so strictly violates intellectual property rights. Only Life Technologies Corporation/ThermoFisher Scientific service engineers have the required product knowledge and specialized training to provide qualification services. Replacement parts have been certified to original manufacturing specifications and can only be ordered and obtained through an FSE from Life Technologies Corporation/ThermoFisher Scientific and are not available for purchase separately.

- b. Alternatives. The purchase of new equipment is cost prohibitive and unwarranted as the current instrumentation meets current requirements when properly maintained.
- c. Additional Supporting Information: Past requirements, sources sought, market research, etc. have yielded NO interest. Providing services at DPG is a

partially a location issue that severely limits interest in most all service contract requirements.

- d. Impact if justification not approved: This instrumentation provides real-time, quantitative PCR amplification for quality assurance and quality control of materials used to test biological defense systems. These instruments are also used to analyze test samples collected in laboratory, chamber and field tests. Without this instrumentation performing to OEM standards QA/QC of biological materials would be degraded and T&E data generated from systems under test and referee instruments would be unreliable. The purchase of new equipment is cost prohibitive and unwarranted as the current instrumentation meets present requirements when properly maintained.

6. Efforts to Obtain Competition: A sources sought posted on beta.SAM.gov on 18 November 2024 yielded no interest from industry.

7. Actions to Increase Competition: Pursuant to FAR 5.202(a)(1), Contracting activity will continue to advocate brand name or equivalent specification for equipment purchased by DPG's BioTest Division (BTD) and personnel will continue to monitor and seek to identify other vendors that may meet BTD's specialized needs.

Subcontracting is not required as the estimated value of the contract is not expected to exceed [REDACTED].

8. Market Research: The market research conducted for the acquisition of Quant Studio PCR and thermal cycler maintenance and repair services has been an effort aimed at identifying potential vendors and evaluating the availability of competitive sources for these services. The primary challenge in sourcing these services stems from the remote location of Dugway Proving Ground (DPG), situated in West Central Utah, which has led to a limited number of willing vendors. Life Technologies Corporation/ThermoFisher Scientific is the primary vendor identified through the research process.

A thorough web search was conducted to identify vendors offering the requested services. The only vendor that consistently appeared was Life Technologies, the Original Equipment Manufacturer (OEM) system components. Life Technologies, previously known as Applied Biosystems, was acquired by Thermo Fisher Scientific. Life Technologies provided proprietary justification documentation that was used in the Justification and Approval process, confirming their status as the OEM and sole provider for the required services.

In accordance with Defense Federal Acquisition Regulation Supplement (DFARS) 205.205-71, DFARS 206.302-1(d), and DFARS Procedures Guidance and Information (PGI) 206.302-1 (d), a source sought was posted to Contract Opportunities on SAM.gov on 18 November 2024 for fourteen (14) days with the intention of soliciting responses

from other potential vendors. However, only Life Technologies responded, reaffirming their role as the primary supplier for the requested equipment and services.

A review of FPDS was conducted to examine historical contract data for similar acquisitions under NAICS codes 811210 and 811219. The search revealed that all contracts related to the Quant Studio and thermal cycler M&R services were awarded on a sole-source basis to Life Technologies.

Given these findings, DPG will continue to pursue opportunities to identify alternate vendors.

9. Interested Sources: To date, no other sources have expressed interest in the proposed action.

10. Other Facts:

Procurement History:

Contract number: W911S620P0031

Vendor: Life Technologies Corporation/ThermoFisher Scientific

Award date: 30 September 2020

Competitive Status: Sole Source

Authority cited: Simplified Procedures for Certain Commercial Items, Title 41
U.S.C. 1901as implemented by FAR Subpart 13.5: 13.501-
(a)(2)(i) Only one responsible source and no other supplies or
services will satisfy agency requirements.

Contract number: W911S616P0054

Vendor: Life Technologies Corporation/ThermoFisher Scientific

Award date: 29 September 2016

Competitive Status: Sole Source

Authority cited: Simplified Procedures for Certain Commercial Items, Title 41
U.S.C. 1901as implemented by FAR Subpart 13.5: 13.501-
(a)(2)(i) Only one responsible source and no other supplies or
services will satisfy agency requirements.

Contract number: W911S614P0069

Vendor: Life Technologies Corporation/ThermoFisher Scientific

Award date: 22 September 2014

Competitive Status: Sole Source

Authority cited: Simplified Procedures for Certain Commercial Items, Title 41
U.S.C. 1901as implemented by FAR Subpart 13.5: 13.501-
(a)(2)(i) Only one responsible source and no other supplies or
services will satisfy agency requirements.

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After thorough review of multiple information sources, including SAM.gov and FPDS, there are current and recent similar contracts for similar services. All services contracts for Life Technologies/ThermoFisher instruments were procured directly through the OEM.

11. Technical Certification: I certify that the supporting data under my cognizance which are included in the justification are accurate and complete to the best of my knowledge and belief.



Date: See digital signature



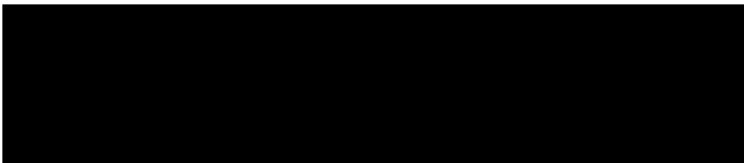
12. Requirements Certification: I certify that the supporting data under my cognizance which are included in the justification are accurate and complete to the best of my knowledge and belief.



Date: See digital signature

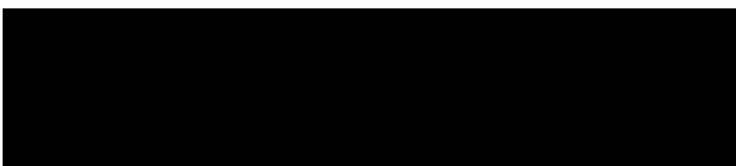


13. Fair and Reasonable Cost Determination: I hereby determine that the anticipated cost or price to the Government for this contract action will be fair and reasonable. This determination will be made using the following: ☐ price analysis ☒ IGCE ☒ other: An internal pricing list has been requested. In the absence of that the government intends to perform an analysis of estimated labor rates and estimated labor hours.



Date: See digital signature

14. Contracting Officer Certification: I certify that this justification is accurate and complete to the best of my knowledge and belief.



Date: See digital signature